

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANTHONY PATTERSON,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; ROBERT MANZI, Shield
2586; STEPHEN HILLMANN, Shield 5359,

Defendants.

SUMMONS

Plaintiff designates
Kings County
as the place of trial

The basis of venue is based on
CPLR § 504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: Orange County, New York
July 16, 2024

/s/ Jessica Gorman
Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
600 Old Country Road, Suite 205
Garden City, New York 11530
P: (212) 500-3273
E: jgorman@lebedinkofmanlaw.com

Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

DETECTIVE ROBERT MANZI, Shield 2586, BROOKLYN ROBBERY SQUAD, 653
GRAND AVENUE, BROOKLYN, NEW YORK 11238

SERGEANT STEPHEN HILLMANN, Shield 5359, BROOKLYN ROBBERY SQUAD, 653
GRAND AVENUE, BROOKLYN, NEW YORK 11238

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANTHONY PATTERSON,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; ROBERT MANZI, Shield
2586; STEPHEN HILLMANN, Shield 5359,

Defendants.

ANTHONY PATTERSON, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT; ROBERT MANZI, Shield 2586; and STEPHEN HILLMANN, Shield 5359, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his rights under the United States Constitution, and under the laws and Constitution of the State of New York.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

3. Plaintiff filed a Notice of Claim in accordance with General Municipal Law Sections 50-e and 50-i on or about July 6, 2023. The notice of claim set forth the name and address

of Plaintiff, his attorneys, the nature of the claim, the time and place where it occurred, and the items and amounts of damages claimed. A 50-h hearing was held on January 3, 2024.

4. At least 30 days has passed since service of the Notice of Claim, and payment of the claim has been refused.

PARTIES

5. At all relevant times, the Plaintiff, ANTHONY PATTERSON, resided in Kings County, City and State of New York.

6. At all relevant times, Defendant CITY OF NEW YORK (City) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

7. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (NYPD) was and is an agency of the City.

8. At all relevant times, Defendant City operated, controlled and managed Defendant NYPD.

9. At all relevant times, Defendant ROBERT MANZI, Shield 2586, was a detective with the NYPD working out of the Brooklyn Robbery Squad. He was the lead detective on the cases at issue here. He is sued in his individual and official capacities.

10. At all relevant times, Defendant STEPHEN HILLMANN, Shield 5359, was a Sergeant with the NYPD working out of the Brooklyn Robbery Squad. He was Defendant Manzi's supervisor on the cases at issue here. He is sued in his individual and official capacities.

11. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

12. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

13. On November 17, 2022, the Plaintiff, Anthony Patterson, was falsely arrested by Defendant police officer Manzi and charged with robbing two stores at gunpoint on October 27, 2022.

14. The perpetrator stole cash registers and fled on a citibike.

15. Lead detective Defendant Manzi believed that these robberies and another one committed a few days later were part of a pattern by the same perpetrator.

16. Fingerprints and other evidence were collected, and witnesses were interviewed.

17. The fingerprints did not match Mr. Patterson, and three of four witnesses did not identify him or identified someone else.

18. Additionally, Mr. Patterson was on parole at the time and his own parole officer told Defendant Manzi that she was not even sure he matched a picture of the suspect.

19. Despite the evidence that he was not the perpetrator, Defendant Manzi nonetheless arrested, charged, and caused his prosecution for two of the robberies.

20. Defendant Sergeant Hillmann, who was Defendant Manzi's supervisor on the cases, signed off on Manzi's work.

21. Unable to make bail, Mr. Patterson was incarcerated for 7 months and 6 days before the charges against him were finally dismissed on June 12, 2023 because the district attorney was

unable to prove the case.

22. Mr. Patterson was not violated on parole.

23. In addition to being falsely arrested, maliciously prosecuted, and locked up for 7 months for crimes he did not commit, Mr. Patterson also suffered through assaults and violence from other inmates while at Riker's. He continues to suffer psychologically from the ordeal. He is anxious to be outside, especially when he is alone, because he fears not having a witness should something like this happen again. He has also become less sociable and is anxious.

24. Mr. Patterson was also in the process of getting his OSHA certification when he was arrested, but that fell through as a result of the arrest and incarceration.

CAUSES OF ACTION
STATE CLAIMS

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
FALSE ARREST

25. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

26. As set forth above, Defendants Manzi and Hillmann caused Mr. Patterson's arrest despite the lack of probable cause.

27. Defendants City and NYPD are responsible and liable for the acts of its employees and agents, which were done within the scope of their employment, under the doctrine of *respondeat superior*.

28. As a direct and proximate result of these actions and inactions, Plaintiff has been injured.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
MALICIOUS PROSECUTION

29. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

30. As set forth above, Defendants Manzi and Hillman caused Plaintiff to be charged and prosecuted on false charges, despite the lack of evidence supporting the charges.

31. Defendants City and NYPD are responsible and liable for the acts of its employees and agents, which were done in the scope of their employment, under the doctrine of *respondeat superior*.

32. As a direct and proximate result of these actions and inactions, Plaintiff has been injured.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

33. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

34. As set forth above, Defendants Manzi and Hillmann caused Mr. Patterson to be arrested, charged, and prosecuted on false charges and despite the lack of probable cause and sufficient evidence.

35. These Defendants knew or should have known that their actions would result in injury to Plaintiff.

36. This extreme and outrageous conduct occurred with the intent to cause, or the disregard of a substantial probability of causing, severe emotional distress to Plaintiff.

37. Defendants City and NYPD are responsible and liable for the acts of their employees and agents, including the individually named Defendants here, which were done within the scope of their employment under the doctrine of *respondeat superior*.

38. As a direct and proximate result of these failures, Plaintiff has been injured.

**FOURTH CAUSE OF ACTION AGAINST DEFENDANTS HILLMANN, CITY, AND NYPD
NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION**

39. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

40. Defendants Hillman, City, and NYPD failed to exercise reasonable care in hiring, training, retaining, and supervising their employees and agents, including the individually named Defendants here, thereby breaching their duty to Plaintiff as well as to the public.

41. Defendants City and NYPD are responsible and liable for the acts of their employees and agents, including the individually named Defendants here, which were done within the scope of their employment under the doctrine of *respondeat superior*.

42. As a direct and proximate result of these failures, Plaintiff has been injured.

FEDERAL CLAIMS

**FIFTH CAUSE OF ACTION AGAINST DEFENDANTS MANZI AND HILLMANN
PURSUANT TO 42 U.S.C. § 1983
FALSE ARREST**

43. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

44. As set forth above, Defendants Manzi and Hillmann caused Plaintiff to be arrested, despite the lack of probable cause and the evidence indicating he did not do what was claimed.

45. As a direct and proximate result of these unconstitutional acts, Plaintiff has been injured.

SIXTH CAUSE OF ACTION AGAINST DEFENDANTS MANZI AND HILLMANN
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION

46. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

47. As set forth above, Defendants Manzi and Hillmann caused Plaintiff to be prosecuted on charges despite the lack of sufficient legal cause and the evidence indicating he did not do what was alleged.

48. As a direct and proximate result of these unconstitutional acts, Plaintiff has been injured.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS CITY AND NYPD
PURSUANT TO 42 U.S.C. § 1983
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

49. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

50. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the Police Department on a variety of subjects including arrests, searches, prosecution, and other areas of importance to the Constitutional rights of citizens and arrestees.

51. In the alternative, and upon information and belief, the City and NYPD have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens and arrestees by failing or refusing to enforce them.

52. Upon information and belief, the City and NYPD have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens and arrestees.

53. As set forth above, Defendants Manzi and Hillmann caused Plaintiff's arrest and prosecution despite the lack of probable cause.

54. Defendants Manzi and Hillmann both have documented histories of violating the civil and other rights of citizens.

55. According to 50-a.org, Defendant Manzi has had 3 CCRB complaints and 6 allegations lodged against him. Two of them were exonerated, meaning the conduct occurred but did not violate NYPD's own rules. These include:

- a. Physical force along with other officers against two people in 2012
- b. Physical force along with another officer against a 16-year-old in 2009

56. Defendant Manzi has also been a defendant in at least 3 other lawsuits, all of which settled in Plaintiffs' favor. These include:

- a. Folk v. City of New York, et. al; EDNY 15-cv-05810, \$9000; in which defendant officers falsely arrested a woman who was very obviously the victim of a crime of domestic violence and caused her prosecution
- b. Granville, Jr. v. City of New York, et. al; Kings Supreme Court 6073/2013, \$80,000

- c. Corry v. City of New York, et. al; EDNY 09-cv-2840, \$15,000; in which defendant officers unlawfully stopped, arrested, and assaulted plaintiff and caused his malicious prosecution

57. Despite this history, the NYPD promoted Defendant Manzi to Detective in November 2017.

58. According to 50-a.org, Defendant Hillmann has had 3 CCRB complaints and 14 separate allegations lodged against him. Seven of those were substantiated, including the following:

- a. Abuse of authority, discourtesy, three unlawful frisks, and an unlawful car search in December 2016; Defendant was specifically found to have witnessed his subordinates commit the unlawful frisks and search and do nothing to stop it
- b. Unlawful frisk in November 2013

59. Defendant Hillmann has also been the subject of at least 6 lawsuits, including at least 5 which settled in Plaintiffs' favors:

- a. Graham v. City of New York, et. al; Kings Supreme 512348/2016; \$60,000 settlement; in which defendant officers were accused of falsely arresting, detaining, prosecuting, assaulting plaintiff, and depriving him of required medication for several days
- b. Ford v. City of New York, et. al; EDNY 16-cv-02046; \$2501; in which defendant officers were accused of falsely arresting and beating plaintiff, then causing his malicious prosecution

- c. Carrasco, et. al. v. P.O. Rodriguez, et. al; SDNY 13-cv-08556, \$17,500; in which defendant officers were accused of using excessive force on several people, falsely arresting plaintiffs, and causing their malicious prosecution
- d. Mays v. City of New York, et. al; EDNY 13-cv-03975, \$40,000; in which defendant officers falsely stopped, frisked, arrested, charged, and caused plaintiff's malicious prosecution
- e. McGill v. City of New York, et. al; SDNY 12-cv-07509, \$85,000; in which defendant officers unlawfully stopped, frisked, and beat plaintiff then falsely arrested him

60. He is also on the Adverse Credibility list.

61. Despite this history, the NYPD promoted Defendant Hillmann to Detective in March 2015, to Sergeant in June 2015, and to Sergeant Detective in September 2022.

62. The Brooklyn Robbery Squad also has a documented history of its officers violating the civil and other rights of citizens, including more than 20 substantiated allegations for things like excessive force, illegal stops, illegal frisks, illegal searches, false arrests, and abuses of authority, including against detectives and sergeants. Nearly all have been since 2010.

63. There have been many more allegations that were exonerated.

64. There have also been a host of successful lawsuits against officers in the Brooklyn Robbery Squad including:

- a. Ferber v. City of New York, et. al; Kings Supreme 513490/2015;
\$8,112,000

- b. Lawrence et. al. v. City of New York, et. al; Kings Supreme 501199/2015,
\$875, 000
- c. Ruiz v. City of New York, et. al; New York Supreme 161248/2014,
\$50,000
- d. Murillo v. City of New York, et. al; SDNY 13-cv-01157, \$75,000
- e. Nixon v. City of New York, et. al; EDNY 19-cv-07215; \$79,000
- f. Seyid-Derby v. City of New York, et. al; Kings Supreme 011133/2012;
\$25,000
- g. Felder-Macarthur v. City of New York, et. al; Kings Supreme
520728/2016, \$30,000
- h. Ourlicht v. City of New York, et. al; EDNY 19-cv-03651, \$17,501

65. Several other additional lawsuits are currently pending.

66. The violations against Mr. Patterson occurred in accordance with this very culture, and these very practices policies, and customs, through the City and NYPD's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individual Defendants here.

67. These actions and inactions demonstrate malice, and they violated Mr. Patterson's constitutional rights. As a direct and proximate result of these unconstitutional acts, he has been injured.

DEMAND FOR JURY TRIAL

68. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Orange County, New York
July 16, 2024

/s/ Jessica Gorman
Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
600 Old Country Road, Suite 205
Garden City, New York 11530
P: (212) 500-3273
E: jgorman@lebedinkofmanlaw.com

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with others known to me, my review of the documents contained in files maintained by my office in connection with this matter, Plaintiff's 50h hearing testimony, my work on the case, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: Orange County, New York
July 16, 2024

/s/ Jessica Gorman
Jessica Gorman, Esq.